

WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge

Adopted at Geneva on May 24, 2024

TABLE OF CONTENTS:

Article 1: Objectives

Article 2: List of Terms

Article 3: Disclosure Requirement

Article 4: Non-Retroactivity

Article 5: Sanctions and Remedies

Article 6: Information Systems

Article 7: Relationship with Other International Agreements

Article 8: Review

Article 9: General Principles on Implementation

World Intellectual Property Organization (WIPO) TRT/GRATK/001

The Parties to this Treaty,

Desiring the promotion of the efficacy, transparency and quality of the patent system in relation to genetic resources and traditional knowledge associated with genetic resources,

Emphasizing the importance of patent offices having access to appropriate information on genetic resources and traditional knowledge associated with genetic resources to prevent patents from being granted erroneously for inventions that are not novel or inventive with regard to genetic resources and traditional knowledge associated with genetic resources,

Recognizing the potential role of the patent system in contributing to the protection of genetic resources and traditional knowledge associated with genetic resources,

Recognizing that an international disclosure requirement related to genetic resources and traditional knowledge associated with genetic resources in patent applications contributes to legal certainty and consistency.

Article 1: Objectives

The objectives of this Treaty are to:

- (a) enhance the efficacy, transparency and quality of the patent system with regard to genetic resources and traditional knowledge associated with genetic resources, and
- (b) prevent patents from being granted erroneously for inventions that are not novel or inventive with regard to genetic resources and traditional knowledge associated with genetic resources.

Article 2: List of Terms

For the purposes of this Treaty:

"Applicant" means the person whom the records of the Office show, pursuant to the applicable law, as the person who is applying for the granting of a patent.

"Application" means an application for granting of a patent.

"Country of origin of genetic resources" means the country which possesses those genetic resources in in situ conditions.

"Based on" means that the genetic resources and/or traditional knowledge associated with genetic resources must have been necessary for the claimed invention, and that the claimed invention must depend on the specific properties of the genetic resources and/or on the traditional knowledge associated with genetic resources.

Article 2 (Continued): List of Terms

"Genetic material" means any material of plant, animal, microbial or other origin containing functional units of heredity.

"Genetic resources" are genetic material of actual or potential value.

"In situ conditions" means conditions where genetic resources exist within ecosystems and natural habitats.

"Office" means the authority of a Contracting Party entrusted with the granting of patents.

"PCT" refers to the Patent Cooperation Treaty, 1970.

"Source of genetic resources" refers to any source from which the applicant has obtained the genetic resources, such as a research center, gene bank, Indigenous Peoples and local communities, the Multilateral System of the ITPGRFA, or any other ex situ collection or depository.

"Source of traditional knowledge associated with genetic resources" means any source from which the applicant has obtained the traditional knowledge, such as scientific literature, publicly accessible databases, patent applications and patent publications.

Article 3: Disclosure Requirement

3.1 Where the claimed invention in a patent application is based on genetic resources, each Contracting Party shall require applicants to disclose:

(a) the country of origin of the genetic resources, or,

(b) in cases where the information in Article 3.1(a) is not known to the applicant, or where Article 3.1(a) does not apply, the source of the genetic resources.

3.2 Where the claimed invention in a patent application is based on traditional knowledge associated with genetic resources, each Contracting Party shall require applicants to disclose:

(a) the Indigenous Peoples or local community, as applicable, who provided the traditional knowledge associated with genetic resources, or,

(b) in cases where the information in Article 3.2(a) is not known to the applicant, the source of the traditional knowledge.

Article 3 (Continued): Disclosure Requirement

3.3 In cases where none of the information in Articles 3.1 and/or 3.2 is known to the applicant, each Contracting Party shall require the applicant to make a declaration to that effect, affirming that the content of the declaration is true and correct to the best knowledge of the applicant.

3.4 Contracting Parties shall provide guidance to patent applicants on how to meet the disclosure requirement as well as an opportunity for patent applicants to rectify a failure to include the minimum information referred to in Articles 3.1 and 3.2 or correct any disclosures that are erroneous or incorrect.

3.5 Contracting Parties shall not place an obligation on Offices to verify the authenticity of the disclosure.

3.6 Each Contracting Party shall make the information disclosed available in accordance with patent procedures, without prejudice to the protection of confidential information.

Article 4: Non-Retroactivity

A Contracting Party shall not impose the obligations of this Treaty in relation to patent applications which have been filed prior to the entry into force of this Treaty with regard to that Contracting Party, without prejudice to existing national laws on disclosure that apply to such patent applications.

Article 5: Sanctions and Remedies

5.1 Each Contracting Party shall put in place appropriate, effective and proportionate legal, administrative, and/or policy measures to address a failure to provide the information required in Article 3 of this Treaty.

5.2 Subject to Article 5.2(bis), each Contracting Party shall provide an opportunity to rectify a failure to disclose the information required in Article 3 before implementing sanctions or directing remedies.

5.2(bis) A Contracting Party may exclude from the opportunity to rectify under Article 5.2 cases where there has been fraudulent conduct or intent as prescribed by national law.

Article 5 (Continued): Sanctions and Remedies

5.3 Subject to Article 5.4, no Contracting Party shall revoke, invalidate, or render unenforceable the conferred patent rights solely on the basis of an applicant's failure to disclose the information specified in Article 3 of this Treaty.

5.4 Each Contracting Party may provide for post grant sanctions or remedies where there has been fraudulent intent in regard to the disclosure requirement in Article 3 of this Treaty, in accordance with its national law.

Article 6: Information Systems

6.1 Contracting Parties may establish information systems (such as databases) of genetic resources and traditional knowledge associated with genetic resources, in consultation, where applicable, with Indigenous Peoples and local communities, and other stakeholders, taking into account their national circumstances.

6.2 Contracting Parties should, with appropriate safeguards developed in consultation, make such information systems accessible to Offices for the purposes of search and examination of patent applications.

6.3 In regard to such information systems, the Assembly of the Contracting Parties may establish one or more technical working groups to address any matters relating to the information systems.

Article 7: Relationship with Other International Agreements

This Treaty shall be implemented in a mutually supportive manner with other international agreements relevant to this Treaty.

Article 8: Review

The Contracting Parties commit to a review of the scope and contents of this Treaty, addressing issues such as the possible extension of the disclosure requirement in Article 3 to other areas of intellectual property and to derivatives.